

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KRYSTAL SUAZO,

Plaintiff,

-against-

**THE CITY OF NEW YORK, OFFICER
JOSE PICHARDO, OFFICER JOHN
DOES #1-3,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Bronx County as
the place of trial

To the above-named Defendants:

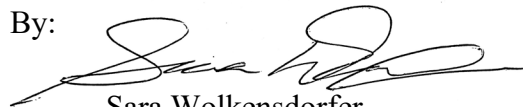
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
May 2, 2024

Rickner PLLC

By:



Sara Wolkensdorfer

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Attorney for Plaintiff

TO: THE CITY OF NEW YORK
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SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

Plaintiff KYRSTAL SUAZO, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2023PI014566.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on October 13, 2023.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of Bronx, because the Plaintiff's claims arose in the County of Bronx.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Jose Pichardo (Shield No. 23992, Tax ID No. 967256) (hereinafter "Defendant Pichardo") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Defendant Pichardo is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Defendant Pichardo is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant John Doe #1 (Shield No. Unknown) (hereinafter “Doe #1”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment He is sued in an individual capacity. Doe #1 was involved in the assault and battery of Plaintiff during her arrest.

16. The true name and shield number of Defendant Doe #1 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing P.O. Doe’s defense in this action.

17. Defendant John Doe #2 (Shield No. Unknown) (hereinafter “Doe #2”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment He is sued in an individual capacity. Doe #2 was involved in the assault and battery of Plaintiff during her arrest.

18. The true name and shield number of Defendant Doe #2 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that

Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing P.O. Doe's defense in this action.

19. Defendant Jane Doe #3 (Shield No. Unknown) (hereinafter "Doe #3") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein she was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment She is sued in an individual capacity. Doe #3 was involved in the assault and battery of Plaintiff during her arrest.

20. The true name and shield number of Defendant Doe #3 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing P.O. Doe's defense in this action.

21. Collectively, Defendant Does 1-3 are referred to as the "Defendant Does."

22. Collectively, Defendant Pichardo and Defendant Does are referred to as the "Individual Defendants."

23. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and

employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

24. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

25. On February 4, 2023, at approximately 7:50 p.m. police arrived at 475 Willis Avenue, Apartment 3, Bronx, New York 10455, where Plaintiff lived with her mother and younger sister.

26. Defendant Pichardo asked Plaintiff to get up and Plaintiff asked what was happening and if she was being arrested.

27. Rather than answer, Defendant Pichardo then grabbed Plaintiff, shoved her face first into the ground, put a knee into her back, and handcuffed her. While she was on the ground, Doe #3 kicked Plaintiff in the shin.

28. Defendant Pichardo applied handcuffs to Plaintiff's with extreme tightness. Plaintiff complained about the tightness, but the Individual Defendants refused to loosen them.

29. Plaintiff was then transported to and detained at the 40th Precinct, 257 Alexander Ave, Bronx, New York 10454 for approximately 16 hours, until her arraignment on February 5, 2023, at approximately 12:00 p.m.

30. During her detainment, Plaintiff was not given food or water, and was frisked several times by unknown members of the NYPD, who touched her in intimate areas. She was also menstruating and not provided sanitary napkins, and not offered a phone call.

31. At her arraignment, Plaintiff was released from custody and the case was resolved with an Adjournment in Contemplation of Dismissal (“ACD”) and a limited Order of Protection, allowing Plaintiff to return to 475 Willis Avenue, Apartment 3, Bronx, New York 10455.

32. Several weeks after the arrest, Plaintiff visited Mt. Sinai Hospital and was treated for wrist pain.

33. On or around March 30, 2023, Plaintiff was again arrested and detained at the 40th Precinct, in a disgusting cell full of mold and blood, and was harassed by multiple members of the NYPD. Upon information and belief, this arrest was never processed.

THE INJURIES TO PLAINTIFF

34. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to her person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

35. The Individual Defendants’ actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff’s civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

36. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST THE INDIVIDUAL DEFENDANTS

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. The Individual Defendants used physical force against Plaintiff.

39. Plaintiff's seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

40. Even assuming *arguendo* that Plaintiff's arrest was lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

41. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

42. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical and emotional injuries.

43. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

SECOND CLAIM FOR RELIEF:
***MONELL* CLAIMS AGAINST THE CITY OF NEW YORK**

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

45. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

46. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**THIRD CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

49. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

50. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

51. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FOURTH CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed her without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

54. As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty.

55. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

56. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FIFTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

58. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

59. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

60. Qualified immunity is no defense to this claim.

61. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

62. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SIXTH CLAIM FOR RELIEF:
VIOLATION OF PLAINTIFF'S RIGHTS UNDER NEW YORK CITY ADMIN. CODE §8
AGAINST DEFENDANTS**

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. Defendants' actions, or lack thereof, enabled gender-based discrimination and Plaintiff was injured as a result.

65. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, psychological, and emotional harm.

66. As a result of the above unconstitutional conduct, Defendants are liable for the conduct of their employees, including Defendant Doe, and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
VIOLATION OF PLAINTIFF'S RIGHTS UNDER NEW YORK CITY
ADMIN. CODE §10 AGAINST DEFENDANTS**

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

68. Defendants' actions, or lack thereof, enabled the commission of a crime of violence motivated by gender and Plaintiff was injured as a result.

69. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, psychological, and emotional harm.

70. As a result of the above unconstitutional conduct, Defendants are liable for the conduct of their employees, including Defendant Doe, and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

72. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

73. As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries.

74. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

75. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

78. As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries.

79. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

80. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 2, 2024

Rickner PLLC

By:



Sara Wolkenstorfer

14 Wall Street, Suite 1603

New York, New York 10005

Phone: (212) 300-6506

Fax: (888) 390-5401

Attorney for Plaintiff

TO: THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, NY 10007

ATTORNEY'S VERIFICATION

I, Sara Wolkensdorfer, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

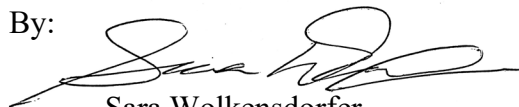
2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
May 2, 2024

Rickner PLLC

By:



Sara Wolkensdorfer

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